

**COURT OF COMMON PLEAS
HAMILTON COUNTY, OHIO**

TYLER PRITSCHAU
4264 Williamson Pl. #2
Cincinnati, OH 45223

Case No.:

Judge:

V.

WADE SCHULTZ

Serve at:

6304 East Alexandria Pike
Cold Spring, KY 41076

and

**STATE FARM MUTUAL
AUTOMOBILIE INSURANCE
COMPANY**

Serve at:

1440 Granville Road
Newark, OH 43093

and

UBER TECHNOLOGIES, INC.

Serve at:

CT Corporation Systems
4400 Easton Commons Way Ste. 125
Columbus, OH 43219

and

UBER USA, LLC

Serve at:

CT Corporation Systems
4400 Easton Commons Way Ste. 125
Columbus, OH 43219

Defendants.

COMPLAINT AND JURY DEMAND

Plaintiff Tyler Pritschau, for his Complaint against Defendants Wade Schultz, State Farm Mutual Automobile Insurance Company, Uber Technologies, Inc., and Uber USA, LLC, states as follows:

I. PRELIMINARY STATEMENT

1. This action arises out of Defendant Wade Schultz's negligent operation of a motor vehicle while in the course and scope of his employment with the Uber defendants. Plaintiff Tyler Pritschau seeks relief from Defendants in the form of compensatory damages for his economic and non-economic injuries, punitive damages, and payment of his attorney fees and costs in prosecuting this matter.

II. PARTIES

2. Plaintiff Tyler Pritschau is a United States citizen and resident of Hamilton County, Ohio.

3. Defendant Wade Schultz is a United States citizen and a resident of Campbell County, Kentucky.

4. Defendant State Farm is a for-profit corporation doing business in Ohio. State Farm issued automobile policy no. C661-385-35 which was in effect at the time of the motor vehicle collision at issue in this case and provided uninsured/underinsured motorist coverage to Plaintiff Tyler Pritschau.

5. Defendant Uber Technologies is a for-profit corporation doing business in Ohio. Uber Technologies operates Uber Eats, a food pickup and delivery service for which Mr. Schultz was operating as a delivery driver at all times relevant in this complaint.

6. Defendant Uber USA is a for-profit corporation doing business in Ohio. Uber USA operates Uber Eats, a food pickup and delivery service for which Mr. Schultz was operating as a delivery driver at all times relevant in this complaint.

III. JURISDICTION AND VENUE

7. Jurisdiction and venue in this Court are appropriate because the events complained of herein occurred within Hamilton County, Ohio.

IV. STATEMENT OF THE CASE

8. On September 25, 2020, Tyler Pritschau was traveling southeast on Kellogg Avenue.

9. At the same time, Mr. Schultz was driving in the opposite direction as Mr. Pritschau on his way to Grove Park Grille to pick up an order in the course and scope of his work for Uber Eats.

10. Suddenly and without warning, Mr. Schultz turned left to enter the driveway of Grove Park Grille, crossing the lane of oncoming traffic directly in front of Mr. Pritschau.

11. Without time to react or make an evasive maneuver, Mr. Pritschau collided with Mr. Schultz's vehicle.

12. The collision launched Mr. Pritschau from motorcycle and caused him to bounce across the windshield and roof top of Mr. Schultz's vehicle before he came to rest on the roadway.

13. The Hamilton County Sheriff's Department cited Mr. Schultz for a violation of R.C. § 4511.42 (failure to yield while turning left).

14. At all times relevant to this complaint, Defendant Mr. Schultz was operating his vehicle on behalf of and/or within the scope of his employment with Uber Eats.

15. Mr. Schultz's actions and/or omissions constituted a conscious disregard for the rights and safety of Mr. Pritschau and had a great probability of causing substantial harm.

16. As a direct result of Mr. Schultz's negligent operation of the motor vehicle, Plaintiff has suffered, and will continue to suffer, physical and emotional injury, including permanent injury; has incurred, and will continue to incur, significant medical expenses; and has incurred lost wages.

V. STATEMENT OF THE CLAIMS

Count 1: Negligence

17. Plaintiff incorporates paragraphs 1 through 16 as if fully rewritten herein.

18. Defendant Wade Schultz's reckless, careless, and negligent operation of his motor vehicle violated Ohio common law and proximately caused injury, including permanent injury, to Plaintiff Tyler Pritschau.

19. Defendants Uber Technologies and/or Uber USA are responsible for the negligence of Defendant Wade Schultz under the doctrine of *respondeat superior*.

Count 2: Declaratory Judgment (R.C. § 2721)

20. Plaintiff incorporates paragraphs 1 through 19 as if fully rewritten herein.

21. Plaintiff requests a declaratory judgment against State Farm to compensate them, within the limits of policy no. C661-385-35, for all damages suffered as a result of Mr. Schultz's negligent operation of his motor vehicle that are beyond the policy limits of Mr. Schultz's own automobile insurance.

PRAYER FOR RELIEF

Wherefore, Plaintiff Tyler Pritschau demand judgment against Defendants as follows:

1. For an award of compensatory damages for all economic damages suffered by Plaintiff in an amount to be determined at trial but in no event less than \$25,000;
2. For an award of compensatory damages for all non-economic damages suffered by Plaintiff in an amount to be determined at trial but in no event less than \$25,000;
3. For an award of Plaintiff's reasonable attorney fees and costs;
4. For a declaration that, to the extent available coverage does not exceed the limits of Plaintiff's underinsured motorist coverage, that Defendant State Farm provide coverage to Plaintiff; and
5. For an award of any other relief in law or equity to which Plaintiff is entitled under the premises.

Respectfully submitted,

/s/Brian J. Butler

Brian J. Butler (OH No. 0082675)

Susan L. Butler (OH No. 0082811)

Dennis A. Gleason (OH No. 0099045)

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JURY DEMAND

Plaintiff Tyler Pritschau demands that all issues of fact in the foregoing complaint be tried to a jury.

/s/Brian J. Butler
Brian J. Butler